



File No.: EXP202303726

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 30/01/2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to the GENERAL DIRECTORATE OF TRAFFIC with NIF Q2816003D (hereinafter, DGT).

The complaint reveals that DGT has provided geolocated tablets to traffic examiners in some provincial offices for use during examinations.

On 12/12/22, the complainant, a traffic examiner, upon learning of this measure, submitted a request for access to public information in accordance with Law 19/2013, of December 9, on transparency, access to public information, and good governance, seeking to know whether the respondent would activate geolocation in the provincial office where they provide services during driving tests.

Additionally, they inquired whether the Data Protection Delegate of the agency had been consulted and what the legal basis for its use was.

On 23/01/23, the General Secretariat of DGT addressed the aforementioned request, referring to Article 90 of the LOPDGDD and informing that the tablets record the location of infractions as support for the examiner in case of a complaint.

The complainant believes that they may be used for different purposes, considering that DGT mentions Article 90 of the LOPDGDD in its response. In this regard, the complainant asserts that they are aware that an examiner had to resolve an appeal and DGT did not provide them with information about geolocation for their resolution.

On the other hand, they claim that the devices have been delivered without expressly informing the workers and their representatives, violating Article 90.2 of that regulation.

Along with the written submission, the request for access to public information made by the complainant and the response issued by DGT is provided, in which the following is indicated:

"In terms of the protection of personal data, it should be taken into account what the AEPD states in its guide on data protection in labor relations when it notes that Article 90 of the LOPDGDD allows the use of geolocation systems for the control of workers, although considering the following:

1. The legal basis for data processing is not consent, but the employment contract and the legally attributed powers of employers to control workers.
2. Workers and, where applicable, their representatives must be informed in an express, clear, and unequivocal manner about the existence and characteristics of these devices.
3. Workers must also be informed about the possible exercise of the rights of access, rectification, limitation of processing, and deletion.
4. The principles of minimization and limitation of purpose are fully operational. Therefore, if the purpose of geolocation is time registration, the data cannot be used to verify the worker's location at all times, but rather the start and end times of the activity, which is what allows the legal basis for time registration (Article 34.9 of the ET).
5. The principle of proportionality requires limiting this type of system to those situations where less invasive means exist.

Employers must ensure that the data collected through this means is processed for a specific purpose and does not have a broader purpose that allows for the continuous observation of workers. Workers using geolocation tools must be fully informed about the monitoring carried out and the purpose of its use by the employer, in this case, as indicated to us, to improve the quality of service.

(...)

Regarding how the geolocation of the tablets works, it is reported that the tablets record the geolocation of infractions, with the aim of serving as support for the examiner in case the candidate files a complaint."

On 12/06/2023, the complainant expanded their initial submission by providing a copy of the Record of

Processing Activities (RAT), in which the processing subject to their complaint was not included. SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 23/03/2024, the aforementioned complaint was forwarded to DGT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. On 30/04/2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

On 04/05/2023, the response from the Data Protection Delegate (hereinafter, DPD) of DGT was received. In it, they communicate what they were informed on 12/04/2023 by ***POSITION.1 (the unit to which the complainant belongs). They inform that "everything stated in the letter of 23/01/2023 is reaffirmed" (referring to the response).

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from the General Secretariat to the public information request made by the claimant, reproduced above). It adds that the examiners from the department received, in December 2022, a copy of the user manual for the tablets and the software application, which explains on page 12 the registration of the GPS position carried out by this system, of which all examiners are aware, and that the examiner cited by the claimant did not request information about the location of exam faults as she had no doubts about that information.

Furthermore, the DPD indicates that prior to the implementation of the tablets, manual recording of the location of exam faults was already being carried out and that currently, when tablets are used, the student's signature is obtained on the device, both at the beginning and at the end of the exam. Finally, it states that ***ORGANISMO.1 informs that the tablet examination system is being progressively implemented nationwide since 2021, and that ***ORGANISMO.2 (from where the complaint originates) is not the only one to have it.

Along with its response, it provides:

- Copy of the User Manual for the tablets in documents named: ***DOC.1
- Copy of the report from ***PUERTO.1 dated 04/14/2023 to which it refers in its response.

On pages 10 to 12 of the manual, the following is indicated regarding the registration of data of the individuals participating in the exam and geolocation through the tablet:

"The application will display a summary of information from the driving school and the instructor, the candidate's data, and the exam data:

- Summary of Instructor Data:
 - .1 Instructor ID
 - .2 Vehicle registration
- Summary of Candidate Data:
 - .1 Candidate Name
 - .2 Candidate ID
 - .3 Date of Birth
- Summary of Examiner Data:
 - .1 Examiner ID
 - .2 JPT/OLT
- Summary of Exam Data:
 - .1 Date and time of appointment
 - .2 Requested permit
 - .3 Codes/subcodes

On this screen, the following actions will be performed:

1. The application will show a field for the candidate to sign in order to start the exam. It is mandatory for the candidate to sign the start of the exam.
2. Once signed, press the "Start Test" button.

3. In the event that the candidate does not show up, the option “No Show” will be selected.

Starting driving tests

When starting the driving tests, the basic data of the candidate and the exam will be displayed, as well as the current grade based on the evaluation being entered. The application will automatically register the start time when the user begins the exam, as well as the GPS position of the starting location.

Note: Once the driving exam has started, it cannot be canceled, although the test can be interrupted due to faults committed or annulled for unforeseen reasons.”

Attached to its response is the aforementioned manual of the MEXM-TRAMO application and the document from ***PUESTO.1.

THIRD: On 06/19/2023, the Director of the Spanish Agency for Data Protection decided to archive the complaint, as no rational indications of an infringement were found.

FOURTH: On 07/19/2023, the claimant filed a motion for reconsideration against the aforementioned archiving Resolution, arguing that it was not sufficiently motivated as it did not consider that the response from DGT to the transfer addressed the object of the complaint, which was the lack of prior information to the examiners in accordance with the provisions of Article 90.2 of the LOPDGDD.

For the resolution of this motion, on 11/14/2023, DGT was given a hearing, which, on 11/28/2023, argued that all examiners are informed about the use of geolocation data in the document of the Manual that was attached on that date. It also indicated that the purpose of implementing geolocation would not fall under what is provided in Article 90.1 (worker control) but rather to register the faults committed by the students. It considers that this is a technical improvement that facilitates the work of the examiners and that it had previously been done manually.

The motion was ultimately resolved on 03/04/2024. In light of DGT's arguments regarding the motion, it was concluded that geolocation data was not collected for the purpose of controlling workers, but to register the faults committed by students. However, during the processing of the motion, indications of two possible breaches of the GDPR were revealed: on one hand, that this processing was not included in the RAT, and on the other, that compliance with the duty to inform the interested parties in that processing was not evidenced. Therefore, the motion for reconsideration was upheld, and it was agreed to continue processing the procedure.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in the

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Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VIII of the LOPDGDD.

As a consequence of the actions taken, the following facts relevant to this procedure have been noted: In the context of the preliminary investigation actions, the manual of the MEXM-TRAMO application was analyzed, which DGT presents as a supporting document for the information provided to the examiners regarding the data processing subject to this procedure.

It is verified that in the submitted document (manual of the TRAMO application) it is mentioned regarding geolocation (on the aforementioned page 12) “The application will automatically record the start time when the user begins the exam, as well as the GPS position of the starting location.” No further information is found in this manual regarding the processing of GPS position data, nor about data protection or the rights of the data subjects whose data is processed.

It is verified that the manual includes a screen of the TRAMO application titled “Start of circulation tests” (page 11 of the manual) which includes a field for the candidate's signature. The screen contains the exam data, data of the examiner, candidate, data of the driving school with the teacher's ID number, and the candidate's signature field, with no information on this application screen provided to the candidate, examiner, or driving school teacher regarding the processing of their personal data. On page 16 of the manual, the screen for the completion of the test appears, again with the signature field for the candidate.

In relation to the data processed by the application, there are two applications responsible for storing the information of the practical exams:

- On one hand, the MEXM application, also known as TRAMO, which is used on the examiners' tablets to receive and evaluate the practical tests. It is responsible for displaying the presentation layer. Additionally, it has a locally encrypted database at the operating system level where information about the tests conducted is stored.

- On the other hand, the EVAL application, with a shared database with the rest of the applications for managing exam files. It stores the requests and appointments for exams.

In the TRAMO application, the test identifier, date and time of the appointment, actual start and end date and time, driving school number, teacher's ID number, vehicle registration with which the test is conducted, and the infractions committed along with the speed and location where the infraction occurred are stored together. The complete route is also stored, recording positions at intervals of 5-10 seconds. The examiner can make observations.

Regarding the retention of data, all the aforementioned information is stored in the local database (on the tablets) for 5 calendar days in case there is a need for it.

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Error in communication with the EVAL application and it was necessary to resend it, being encrypted at the operating system level, and accessible only from the application itself; additionally, the tablets are encrypted.

From TRAMO, the information from the test is sent to the EVAL application where the exam citation is updated with the data received from TRAMO (start time, end time, infractions committed along with the location of the infractions, as well as the evaluation: pass/fail). In EVAL, the content of the route is discarded, storing only the position data related to the infractions committed.

They indicate that in EVAL, the data on infractions is stored for the time necessary to respond to possible claims. The purpose is to facilitate the examiner's response to a possible claim from the candidate.

Regarding the purposes of the processing, according to what was stated by DGT, "they are framed within the processing activity referred to in the RAT as 'Management of the data of applicants and holders of motor vehicle driving licenses,' whose legal basis is the 'Consolidated Text of the Law on Traffic, Circulation of Motor Vehicles and Road Safety approved by Royal Legislative Decree 6/2015, of October 30, and its implementing regulation: the General Drivers Regulation approved by Royal Decree 818/2009.'"

Finally, in the investigative actions, it is noted that the information on the processing was not updated in the RAT, with DGT alleging two reasons: that the system was not fully implemented and that the publication in RAT is done jointly for all units dependent on the Ministry of the Interior and changes already requested were pending update in the RAT.

On 06/09/2024, within the preliminary investigative actions, the SGID accessed the DGT website and verified that there was an update on 03/09/2024 that includes the processing activities subject to this procedure, in the following terms, as recorded in the preliminary investigative actions report:

"It is verified that there is an existing processing activity called 'Processing: DGT - Registry of drivers and applicants,' with purposes 'Management of the data of applicants and holders of motor vehicle driving licenses and the tests associated with driving licenses' and with categories of personal data processed 'Name, surname, identifier, photo-stub, address, health observations, date of birth and validity, points, data from road safety training courses, location of infractions from the practical exam, exchanges, and incidents of the license.'

As legal basis, it cites: 'GDPR.- 6. 1. a) the data subject has given consent to the processing of their personal data for one or more specific purposes.

GDPR.- 6. 1. c) the processing is necessary for compliance with a legal obligation to which the data controller is subject.

GDPR.- 6. 1. e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

- Royal Legislative Decree 6/2015, of October 30, which approves the consolidated text of the Law on Traffic, Circulation of Motor Vehicles and Road Safety.
- Royal Decree 818/2009, which approves the General Drivers Regulation.
- Bilateral exchange agreements.”

In relation to the information provided to the data subjects (students, teachers, and examiners) regarding the processing of their position during the exam and their data protection rights, DGT provided a copy of the form given to applicants (“Application for aptitude tests”) at the end of which the following informative text appears:

“We inform you that the personal data collected in this form will be processed exclusively for the purpose of providing the requested service at the DGT, applying the current data protection regulations and legitimized by Law 6/2015 of October 30. The data controller is the General Directorate of Traffic. You may exercise your rights by sending a form to: DGT, Calle Josefa Valcárcel 44, 28071 Madrid; or by email: protecciondedatos@dgt.es. No international transfers are planned, and the data will be retained for the time necessary to fulfill the purpose of the processing.

<https://sede.dgt.gob.es/es/contenidos/proteccion-de-datos.shtml>.”

This text adopts a layered information model, so in the context of the investigative actions, it was verified that the following information appears at the cited URL:

“Privacy Policy

Basic information on data protection

In accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, the General Directorate of Traffic is the Data Controller of the personal data used in the exercise of its powers and complies with the obligations detailed in Article 24 of the GDPR and Article 28 of the LOPDGDD.

Data Controller:

The Data Controller of personal data is the General Directorate of Traffic.

The set of processing activities managed by the General Directorate of Traffic is detailed in the corresponding section of the Activity Register of the DGT within the RAT of the Ministry of the Interior.

Purpose of the processing:

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The purpose of the various processing activities for which the General Directorate of Traffic is responsible is detailed in the Activity Register of the DGT within the RAT of the Ministry of the Interior.

Legality of the processing:

The set of processing activities for which the General Directorate of Traffic is responsible is carried out in compliance with legal obligations, or a mission performed in the public interest, or is based on consent. The legal basis/es are detailed for each of the activities in the Activity Register of the DGT within the RAT of the Ministry of the Interior.

Retention periods:

Data will be retained for the necessary time to fulfill the purpose for which they were collected and to determine any possible liabilities that may arise from that purpose and the processing of the data. The provisions of the regulations on archives and documentation will apply. The retention periods for the various processing activities for which the General Directorate of Traffic is responsible are detailed in the Activity Register of the DGT within the RAT of the Ministry of the Interior.

Data transfers:

The recipients of the data from the processing activities for which the General Directorate of Traffic is responsible are detailed in the Activity Register of the DGT within the RAT of the Ministry of the Interior. The existence of links to the RAT has also been verified each time it is mentioned in the

previous text, and following the update of the RAT, it is confirmed that the RAT cites as one of the categories of personal data "location of the faults in the practical exam." Regarding the text to inform the examiners, the DGT states that it has sent it to the development area for inclusion within the TRAMO application, in the following terms:

"In accordance with personal data protection regulations, you are informed that your data will be processed confidentially and will be used exclusively for the purpose of improving the service and the quality of the practical tests for obtaining a driving license, in compliance with a legal obligation. You may exercise your rights before the Data Controller: General Directorate of Traffic, Calle Josefa Valcárcel, 28, 28071 Madrid.

Email DPD: protecciondedatos@dgt.es. No international data transfers are planned. The data will be retained for the time necessary to fulfill the purpose for which they were collected and to clarify any possible liabilities arising from that purpose, with the provisions of the archive regulations applying. You can consult recipients and other information at C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es."

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information on the page <https://www.dgt.es/contenido/proteccion-de-datos/>."

They do not provide documentation regarding the information offered to driving school instructors.

Finally, regarding the information contained in the RAT, after the modification made previously, there is currently information about the treatment of location of infractions. This information was recently included (on 30/04/2024, when DGT responded to the request for information regarding the investigative actions, indicating that it would proceed to its submission for incorporation). There are links or references to the RAT in the second layer of data protection information provided to the applicant (student) when they apply for the test, with the first layer being that offered in the application form. Neither in the first nor in the second layer is there information about the geolocation of infractions, having to resort to the links to the RAT located in the second layer, or to the RAT directly. The RAT does not mention the treatment of geolocation of the complete route of the exam, although this treatment is carried out for a maximum of 5 days. They have not provided information offered in this regard to examiners, students, or instructors.

Regarding the information that, according to DGT, is offered to the examiners, included in the TRAMO application manual, it only states, "The application will automatically register the start time when the user begins the exam, as well as the GPS position of the starting location." There is no mention in this manual of the geolocation of the complete route of the test, or of the infractions.

In light of the above, within the framework of the preliminary investigative actions, the following conclusions are reached:

1. The respondent processes geolocation data of the complete route of the practical driving exam through the tablets carried by the examiners, with the data from this route being deleted within a maximum of 5 days, when it is transferred from the tablets to another application of the respondent (called EVAL), in which only the geolocation data of the locations where the infractions occurred is retained. These treatments are carried out associated with identifiers of the student, instructor, and examiner.
2. As of 29/11/2024, there is information in the RAT about the treatment of location of infractions. This information has been included after 30/04/2024.
3. There are links or references to the RAT in the second layer of data protection information provided to the applicant (student) when they apply for the test, with the first layer being that offered in the application form. Neither in the first nor in the second layer is there information about the geolocation of infractions, having to resort to the links to the RAT located in the second layer, or to the RAT directly.
4. The RAT does not mention the treatment of geolocation of the complete route of the exam, although this treatment is carried out for a maximum of 5 days. Furthermore, the information offered in this regard to examiners, students, or instructors has not been substantiated.
5. The impact assessment of personal data regarding the treatment of data from applicants for driving licenses does not mention the tablets.
6. There is no documented evidence that the DPD has participated in the geolocation project, although

they claim that this has been the case.

SIXTH: On February 3, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, for the alleged infringement of Articles 30 and 13 of the GDPR, classified under Articles 83.4.a) and 83.5.b) of the GDPR, respectively.

SEVENTH: On 19/02/2025, a letter was received from the DPD of DGT, informing of measures that will be implemented, specifically:

“1.- Update of the Record of Processing Activities (RAT), expanding the information on the categories of personal data of the processing ‘REGISTER OF DRIVERS AND APPLICANTS’ so that it includes the complete route of the exam and not only the start of the route and the location of the infractions.
2.- Ensure the right to information so that it is available to all interested parties occupying the vehicle during the driving test (examining officials, driving school instructors, and applicants for the driving license).”

EIGHTH: The aforementioned initiation agreement was notified in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

In relation to this point, it should be clarified that the letter of 19/02/2025, mentioned in the seventh antecedent, is not understood as a letter of allegations, as it is informative in nature, is signed by the DPD, and does not question the content of the initiation agreement.

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Article 64.2.f) of the LPACAP - a provision of which the responding party was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the responding party, and the sanction that could be imposed. Therefore, considering that the responding party has not made allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: That, at least since December 2022, the DGT began to carry out data processing consisting of the collection and storage of identity and geolocation data of individuals participating in the examinations to obtain a driving license.

For this processing, electronic devices (tablets) were made available to the examiners (public employees of the DGT) on which the following data is entered: names and surnames of examiners, students, and driving school teachers; signature of the student; ID number of the student and teacher; test identifier; date and time of the appointment; actual date and time of the start and end of the test; driving school number; infractions committed; location where the infractions were committed; complete route and qualification of the test (“pass/fail”).

The data was collected in the MEXM-TRAMO software application and subsequently transferred to the EVAL application.

All of this is documented in the application information provided by the DGT.

SECOND: That, as of the date of the complaint, the aforementioned processing did not appear in the information of the RAT published in the inventory of the Ministry of the Interior, of which the DGT is a part. On the dates 03/09/2024 and 30/04/2024, this information was modified and expanded on the website, including references to the processing and geolocation of the infractions committed, although not to the geolocation of the complete route. Both facts are evidenced in the preliminary investigation

report.

THIRD: That in December 2022, the manual for the use of the MEXM-TRAMO application was provided to the examiners, which states on page 12, in relation to geolocation: “the application will automatically record the start time when the user begins the exam, as well as the GPS position of the starting location.” The manual does not include further references to the treatments of the position nor about data protection or the rights of the data subjects.

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FOURTH: That the form provided to the candidates titled “Application for Aptitude Tests” (provided by the DGT) and the information on the website to which this form refers (collected in the context of the preliminary investigation) do not include references to the collection and processing of geolocation data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that personal data processing is taking place, since the DGT carries out, among other treatments, the collection and storage of personal data of examiners, students, and driving school teachers: names and surnames, signature of the student, ID number of the student and teacher, test identifier, date and time of appointment, actual date and time of start and end, driving school number, infractions committed, and location where the infraction was committed, complete route and qualification of the test (“pass/fail”).

The DGT carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

According to Article 1.5 of Royal Decree 207/2024, of February 27, which develops the basic organizational structure of the Ministry of the Interior, the General Directorate of Traffic is a management body dependent on the Undersecretariat of that Ministry.

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III

Unfulfilled Obligation. Record of Processing Activities

Article 30 of the GDPR states the following:

“1. Each controller and, where applicable, their representative shall maintain a record of the processing activities carried out under their responsibility. This record shall contain all the information indicated below:

- a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;
- e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;
- f) where possible, the envisaged time limits for erasure of the different categories of data;
- g) where possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1.

2. Each processor and, where applicable, the representative of the processor, shall maintain a record of all categories of processing activities carried out on behalf of a controller, which shall contain:

- a) the name and contact details of the processor or processors and of each controller on behalf of which the processor is acting, and, where applicable, the representative of the controller or the processor, and the data protection officer;
- b) the categories of processing carried out on behalf of each controller;
- c) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;
- d) where possible, a general description of the technical and organizational security measures referred to in Article 30, paragraph 1.

3. The records referred to in paragraphs 1 and 2 shall be in writing, including in electronic form.

4. The controller or the processor and, where applicable, the representative of the controller or the processor shall make the record available to the supervisory authority upon request.

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5. The obligations set out in paragraphs 1 and 2 shall not apply to any enterprise or organization employing fewer than 250 persons, unless the processing that it carries out is likely to result in a risk to the rights and freedoms of data subjects, is not occasional, or includes special categories of personal data referred to in Article 9, paragraph 1, or personal data relating to criminal convictions and offenses referred to in Article 10."

In relation to the obligation to maintain such a record of processing activities, Article 31.2 of the LOPDGDD specifies the form and publicity that certain entities must give in the following terms:

"The subjects listed in Article 77.1 of this organic law shall make public an inventory of their processing activities accessible by electronic means in which the information established in Article 30 of Regulation (EU) 2016/679 and its legal basis shall be included."

Among the entities referred to in the aforementioned article would be the General State Administration, in accordance with letter c) of Article 77.1 of the LOPDGDD.

In this case, it has been established by the documentation submitted by DGT as the requested entity that there is a processing of data consisting of the collection and storage of geolocation data of individuals participating in the exams to obtain a driving license. For this processing, electronic devices (tablets) have been made available to the examiners (public employees of DGT) in which the aforementioned data is entered in the basis III.

These devices collect information about the location of the individuals participating in the test (examiner, student, and driving school instructor), both of the complete route and of the locations

where the student commits an infraction, as well as the start and end time of the test. This data is collected in the MEXM-TRAMO software application and transferred to the EVAL application. The purpose of the processing would be to document the evaluation process, within the framework of the traffic regulations cited by DGT.

This processing should be included in the Record of Processing Activities and the corresponding information published in the inventory of the Ministry of the Interior, to which DGT is subordinate. According to what has been established in the context of the investigation proceedings, on 03/09/2024, a part of this processing related to the geolocation of the infractions committed has been updated in the RAT.

However, the processing also includes other data: those related to the geolocation of the complete route, which should also be recorded as information in the RAT but are not as of today.

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Therefore, the proven facts would constitute an infringement, attributable to DGT, for violation of Article 30 of the GDPR, as transcribed above.

IV

Classification of the infringement of Article 30 of the GDPR and qualification for the purposes of limitation

Article 83.4 of the GDPR classifies the violation of the following article as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purposes of the limitation period, Article 74 of the LOPDGDD establishes the following:

"Remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

I) Having a Record of processing activities that does not include all the information required by Article 30 of Regulation (EU) 2016/679."

V

Unfulfilled obligation. Information that must be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where

they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this case, as stated, identity and geolocation data of the individuals participating in the exam are collected: examiner, student, and driving school teacher. In this regard, according to Article 13, it is the obligation of DGT, as the data controller, to provide them with the information collected in paragraphs 1 and 2 of that article.

According to the information provided by DGT in response to the transfer of the complaint, in December 2022, the manual for using the MEXM-TRAMO application, in which the data subject to this procedure is collected, was provided to the examiners, entered by the examiner using the tablet.

However, in the

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The manual provided cites geolocation (page 12) stating, "The application will automatically register the start time when the user begins the exam, as well as the GPS position of the location where it starts," without further information on the treatment of the position or on data protection or the rights of the data subjects involved. Furthermore, the screens included in that manual that display information regarding the collected data do not mention this.

On the other hand, in response to the request made within the framework of the preliminary investigation proceedings, DGT provided a copy of the form given to candidates (titled "Application for Aptitude Tests"), at the end of which there is an informational text that adopts a layered information model, referring to the agency's website. Upon verifying the information at the cited URL, there is indeed a reference to the information established in Article 13 of the GDPR. However, this information is provided in relation to the data collected in the form, and the form does not mention geolocation data. Therefore, it cannot be understood that the interested parties are being provided with the information required by Article 13 regarding all the data collected from them, as they are not informed that this data includes location data.

Additionally, at the moment the student signs on the tablet while taking the test, there is no record that the information required by Article 13 of the GDPR is provided to them.

After the modification of the RAT, there are links or references to the RAT in the second layer of data protection information offered to the candidate (student) when they apply for the test, with the first layer being that provided in the application form. Neither in the first nor in the second layer is there information regarding the geolocation of the entire route, requiring recourse to the links to the RAT located in the second layer, or to the RAT directly.

Lastly, no documentation has been provided regarding information offered to driving school instructors. Therefore, the proven facts would constitute an infringement, attributable to DGT, for violation of Article 13 of the GDPR, as previously transcribed.

VI

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies the violation of the following article as an administrative infringement, which will be sanctioned, according to paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of the data subjects pursuant to Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Infringements, states:

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"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

VII

Sanction

Article 83 "General conditions for the imposition of administrative fines" of the GDPR, in its paragraph 7, establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

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The resolution will be notified to the person responsible or in charge of the processing, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of interested parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable. Likewise, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, expressly indicating the identity of the person responsible or in charge of the processing who committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be subject to what its specific regulations provide. This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of responsible parties or processors listed in section 1 will be resolved, in any case, by declaring the infringement.

In light of the facts presented, it is considered appropriate to impose a sanction on the claimed party for the violation of Articles 30 and 13 of the GDPR, infringements classified in Articles 83.4.a) and 83.5.b) of the GDPR, respectively.

In this case, the claimed party, DGT, is part of the General Administration of the State as a management body of the Ministry of the Interior, in accordance with Article 1.5 of Royal Decree 207/2024, of February 27, which develops the basic organic structure of the Ministry of the Interior.

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In accordance with the above, the sanction to be imposed is the declaration of infringement.

VIII

Adoption of corrective measures

The aforementioned Article 77 of the LOPDGDD provides that the resolution may establish the measures that the infringing entity must adopt to cease the infringing conduct, correct the effects of the infringement that has been committed, and carry out the necessary adjustments, in this case, to the requirements set forth in Articles 30 and 13 of the GDPR, also having to provide the AEPD with evidence of compliance with the requirements.

In this act, in accordance with the infringements committed and the facts revealed, these measures consist of the following: within 3 months from the date this resolution becomes final and enforceable, DGT must:

- Provide evidence of making available to the affected parties the information referred to in Article 13 of the GDPR with the scope expressed in this resolution.

- Provide evidence of the incorporation in the RAT of the information related to the treatments carried out, including the data of the complete journey.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, has infringed the provisions of Articles 30 and 13 of the GDPR, infringements classified in Articles 83.4.a) and 83.5.b) of the GDPR, respectively.

SECOND: TO ORDER the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, that pursuant to Article 58.2.d) of the GDPR, within 3 months from the date this resolution becomes final and enforceable,

- Provide evidence of making available to the affected parties the information referred to in Article 13 of the GDPR with the scope expressed in this resolution.

- Provide evidence of the incorporation in the RAT of the information related to the treatments carried out, including the data of the complete journey.

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THIRD: NOTIFY this resolution to the GENERAL DIRECTORATE OF TRAFFIC.

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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